

CHAPTER 5

Jus in Bello #2

Supreme Emergencies

“[W]e have a right, indeed are bound in duty, to abrogate for a space some of the conventions of the very laws we seek to consolidate and reaffirm.”

Winston Churchill¹

The supreme emergency exemption is a doctrine which pushes to the very limits the relationship between *jus ad bellum* and *jus in bello*. Though it is *nowhere* written into international law, the supreme emergency exemption nevertheless has high profile support, including such luminaries as Churchill, John Rawls and Michael Walzer. But it is Walzer who is fundamentally responsible for this exemption within just war theory—Churchill merely inspires it, and Rawls merely apes it.

As Walzer defines it, the supreme emergency exemption allows a country victimized by aggression to set aside the rules of *jus in bello* and fight however it wants, *provided*: 1) there is public proof the aggressor is just about to defeat the victim militarily; *and* 2) there is similar proof that once it does so, the aggressor will not simply crush the political sovereignty of the victim community but, moreover, institute a brutal policy of widespread massacre and enslavement against its individual members. Walzer’s favourite, and only, example of such an aggressor is Nazi Germany.² More on the example shortly. Let’s push our definitions, and sense of the stakes, toward greater clarity.

We saw last chapter that (external) *jus in bello* contains a number of general moral rules within which the stunning number of legal conventions and prohibitions can be located. These abstract rules include: 1) non-combatant immunity from direct and intentional attack; 2) benevolent quarantine for captured soldiers; 3) due care to civilians; 4) use of proportionate means only against legitimate military targets; 5) no reprisals; 6) no prohibited weapons; and 7) no use of means “*mala in se*,” or “evil in themselves,” such as forcing captured soldiers to fight against their own side. Walzer is saying here that, under supreme emergency conditions, the country with *jus ad bellum* on its side (i.e., the victim of aggression) may set aside all *jus in bello* rules and fight *however it wants to*—without restraint—to stave off the threat posed by the aggressor. In particular, the victim country may wilfully violate non-combatant immunity, and do such things as deliberately attack

enemy civilians with lethal force. Traditionally, we have seen that such transgression has counted as the clearest violation of *jus in bello* rules, and has been seen as one of the very worst war crimes. Indeed Hugo Grotius once said that non-combatant immunity is a rule so powerful that it “cannot be changed, even by God.”³ So, what we have in the supreme emergency exemption is probably the most controversial, and consequential, amendment to just war theory ever proposed. The stakes regarding its acceptance into just war theory are enormous and disturbingly relevant to an era not unacquainted with genocide and weapons of mass destruction (WMD).

Which Cases Count?

Churchill, Walzer and Rawls concur that Britain experienced a supreme emergency in the early 1940s. By 1940, Nazi Germany stood triumphant in Western and Central Europe as well as Scandinavia, following its shattering success during the Blitzkrieg. Neither the USA nor the USSR were, at this point, in the war to drain the pressure off Britain. Hitler indeed had plans to invade the UK, and was “softening up the target” with *Luftwaffe* bombing raids, especially on Coventry and London itself. These Nazi bombing raids were indiscriminate and terrorist. Churchill, who coined the phrase “supreme emergency” in this regard, argued that as Prime Minister he had to authorize exceptional measures under such ultra-menacing conditions. He suggested that the British were “fighting to re-establish the reign of law and to protect the liberties of small countries. Our defeat would mean an age of barbaric violence and would be fatal, not only to ourselves, but to the independent life of every small country in Europe.” “It would not be right,” Churchill declared, “that the aggressive power should gain one set of advantages by tearing up all laws, and another set by sheltering behind the innate respect for law of its opponent. Humanity, rather than legality, must be our guide.” And so Churchill authorized the Royal Air Force to begin bombing raids on German cities, knowing full well—even intending—that German civilians would be killed. This was partly in retaliation, or reprisal, for Hitler’s own original bombings of London and Coventry, but was also designed to deter any conquest of Britain. It was thought that the German people, delirious with the Blitzkrieg’s success, had to be made to feel the sting of war—needed some wind taken out of their sails—lest their approval drive Hitler’s armed ambitions even further. Air power was the only tool at Churchill’s disposal in this regard, and he employed it to the full during this period, which culminated in the Battle of Britain—when so few did so much for the safety of so many. The fact that Hitler then gave up his UK invasion plans and turned his murderous attention towards the Russian border was cited by Churchill as evidence his supreme emergency strategy worked.⁴

Walzer and Rawls agree with all of this, yet are even more permissive than Churchill himself regarding the time during which Britain experienced

a supreme emergency. After all, Britain “stood alone” against the Nazis in the West until America entered the theatre in substance, in 1942. Even then the Allies didn’t experience much success until the campaigns in North Africa and Italy in 1943. In the East, the Soviets didn’t get involved until 1942, and initially suffered terrible setbacks. Both American theorists are inclined to think Britain’s supreme emergency lasted from 1940 until well into 1943, and thus all RAF bombing of German residential centres during this time was permissible. Walzer puts the core moral issue in the stark terms we need to reflect on: “(C)an one do *anything* [his italics], violating the rights of the innocent, in order to defeat Nazism?” He answers yes, and justifies himself in a phrase already quoted but worth repeating: “Nazism was an ultimate threat to everything decent in our lives, an ideology and a practice of domination so murderous, so degrading even to those who might survive, that the consequences of its final victory were literally beyond calculation, immeasurably awful. We see it—and I don’t use the phrase lightly—as evil objectified in the world.”⁵

When supreme emergency conditions evaporate, however, the justification for deliberate civilian targeting dissolves. So Walzer and Rawls argue that continued Allied bombing of German cities—and emphatically the fire-bombing and razing of Dresden in 1945—was unjust. Indeed, Churchill himself grew to regret the later bombings, admitting they were motivated more by bloodlust, the passions of war-fighting and, above all, by a desire for revenge for the London and Coventry bombings, than by any plausible moral or even strategic concern.⁶

Rawls, in his writings on supreme emergency,⁷ is mostly concerned with using the doctrine as a tool for criticizing America’s use of the atomic bomb on Japan in 1945. He suggests that perhaps the only thing which could justify the use of nuclear weapons—which of course are wildly destructive and unusually indiscriminate—is the experience of a supreme emergency. But America in August 1945 was not in a supreme emergency at all; on the contrary, it had just triumphed in Europe and had Japan by the throat. In fact, America was one of the most powerful and privileged societies on earth at that time. So the moral case for its using WMD was nil. In Rawls’ view, US President Harry Truman’s decision to do so anyway was a cynical piece of *realpolitik*, designed to show Japan and the world just how powerful America had become. The bombing was not done to stave off devastating loss; it was done to secure whatever terms of Japan’s surrender America wanted—at minimal cost to the US—as well as to impress potential future rivals like the Soviets and Chinese with American capability. How stunning, then, was Truman’s notorious comment that he never hesitated at all to order the bombing, that he never lost a moment’s sleep over it. Walzer reflects insightfully on Truman’s problematic cost-benefit approach: “Commonly, what we are calculating is *our* benefit (which we exaggerate) and *their* cost (which we minimize or disregard entirely).”⁸ [his italics]

Truman's reply would be that the atomic bombings, in spite of their destructiveness, actually saved lives. How so? The Japanese, in July and August 1945, were irrationally refusing to surrender when they were clearly beaten and after their other former allies, Italy and Germany, had already given up. Moreover, in the previous battle of Okinawa—the first piece of Japanese territory on which US and Japanese forces clashed—the Japanese showed themselves capable of some of the most ferocious and bloody resistance in military history. So US decision-makers were in a dilemma: the Japanese were beaten yet refused to admit it, and apparently the only way to force surrender was an invasion of Japan itself. But Okinawa foretold that such an invasion would be an absolute slaughter for both US forces and Japanese soldiers and civilians: one million dead was the minimum predicted casualty total. By contrast, the Hiroshima and Nagasaki bombings killed about one-quarter that number—and they forced the Japanese to surrender without a blood-soaked invasion. So the bombings, while dramatic and using unprecedented technology, actually served both sound military and even moral objectives of forcing the surrender of an unjust aggressor while minimizing casualties.⁹

Walzer and Rawls refuse to be swayed by this reasoning. The figure of one million dead, and so many more injured, seems completely speculative and thus probably inflated. It is always convenient when we construct counterfactual numbers and arguments—and they end up “revealing” that our choices were right, leaving our opponents no way of either confirming or refuting the “evidence.” Moreover, even if the numbers *were* true, Walzer and Rawls insist that they miss the point. The point is not to minimize the casualties while pursuing policies designed to advance majority interests regardless of whether there is rights violation or not. The point is to minimize casualties while pursuing policies, and using means of war, *which do not violate human rights*. And they believe the atomic bombings violated human rights because the explosions violated the core principles of discrimination and non-combatant immunity. It was foreseen, and intended, that innocent civilians would die *en masse* in both cities as a result of the bombings: that was supposed to happen to provide the leverage on the Japanese government to surrender and avoid suffering even more threatened bombings in the future. That was indeed what happened—but even if that was a happy consequence (i.e., the final surrender of an unjust, aggressive Japanese regime) it doesn't provide after-the-fact justification for the rights violation used to generate it.

What is also interesting in Rawls' reflections is that they are not merely backward-looking, designed to render correct judgment regarding historical cases. They are also forward-looking, in that they provide conditions for future use of controversial wartime measures. It is a clear inference from Rawls' reflections that a country suffering from a supreme emergency might be justified in using nuclear weapons, and perhaps other WMD, to prevail against an aggressor.

Which leads me to speculate whether we might imagine possible future instances. Consider the case of Israel. Israel, of course, occupies a quite precarious position in the Middle East: very small geographically, surrounded by hostile (or, at best, cool) neighbours, essentially the only democracy amidst a sea of authoritarian regimes, each of which it has encountered in war in the past 60 years. The concentration of population in its few major cities also makes Israel quite an easy target, compared to most others, for utterly devastating widespread destruction. The continuing controversy over the Palestinians, moreover, fuels an almost constant security crisis in Israel, and remains a *cause célèbre* amongst Arabs, fuelling rage and terrorism. What if a dystopian future unfolded, according to which Israel found itself in a condition of supreme emergency at the hands of its neighbours and/or domestically-located terrorists? If so, what may Israel permissibly do at that moment, especially in connection with its nuclear arsenal? Could it contemplate nuking Tehran, Riyadh, or Damascus? More biting, what about its own West Bank, or Gaza Strip, holdings? This horrible hypothetical underlines the continuing relevance of the proposed supreme emergency exemption—it is not just an outdated device for contemplating “Churchill versus the Nazis.” In fact, in the era of terrorism and WMD, it is every bit as relevant as when Hitler darkened the world.

Some academics and politicians have actually argued that America, post-9/11, is in a condition of supreme emergency (or something very close to it). US Secretary of Defense Donald Rumsfeld has repeatedly made this assertion, as has former NYC mayor Rudy Giuliani; even President George Bush Jr. has appeared to assert this, what with his references to the “axis of evil” and his frequent claim that nothing less than civilization itself is at stake in the current conflict. All three men have drawn direct analogies between the ongoing war on terror and the war against fascism on Nazi Germany and Imperial Japan in World War II. Giuliani most directly—and I suppose not surprisingly, given his experience that day of 9/11—has drawn an absolute analogy between the war on terror and the situation of Churchill’s Britain during the Nazi Blitz. These men have all argued that we need completely new rules to regulate wartime since it is a completely new era, owing to the potential blending between terrorists and WMD. Just war theory—quaint, decent, state-centric—must go the way of the dodo bird in the harsh, post 9/11 world.¹⁰ But I doubt it.

Historically, we have heard the death of just war theory—and even international law—pronounced many a time before, and never has it turned out to be the case. The moral truth has a reassuring stability and resilience to it, and can survive trendy proclamations of its imminent demise and the dawn of a new era of brutality, wherein we can and should fight however we want, as bare-knuckled and bloody as we want.

We should be very hesitant to agree that America is in a supreme emergency, and we should consider sceptically the motives and incentives of

those who do so. Why might they want to hype the notion that America suffers from supreme emergency? Well, perhaps that makes it easier for them to start and justify controversial wars, as in Iraq. Perhaps it makes it easier for them to target suspected terrorists with killing or capture, alongside any civilians they believe are supporting the terrorists. It makes all those collateral civilian casualties in the Middle East readily justifiable. The mega-crisis atmosphere also makes the extra-judicial detention and even torture of terrorist suspects much easier, and creates an environment wherein the people rally around the government in patriotic panic, and the government enacts forceful legislation which may violate classical civil liberties. Recall what was said last chapter about the similarities between the early Cold War period and our era, the early phase of the war on terror: the ferocious, demonized enemy; the starkly competing ideologies; the obsessive fear about WMD; the civil liberties issues; and the culture of self-restraint, patriotism and reluctance to criticize the establishment.

Declaring a supreme emergency in America, post 9/11, is an invitation to: 1) irrationality (since it is not true and stimulates panic); 2) moral violation or even atrocity (on far-away battlefields and prisons); 3) internal political repression; 4) external strategic mistakes (Abu Ghraib, and probably Iraq in general); and 5) experiencing profound regret later, when the country comes to realize that, in knee-jerk reaction to the shock of 9/11, it accidentally authorized a whole slew of controversies which it should have resisted. I have heard it said that America today is both the most powerful and the most scared country on earth—an incredibly dangerous combination. And dangerous not just for those on the receiving end of American wrath but even, in the senses just described, for the American people, too.

When we look at the three criteria for a supreme emergency, we see that America meets only one: it was genuinely victimized by aggression on 9/11. But there is little to show that America's military defeat, then or now, was close or imminent, much less that America will soon suffer widespread massacre or enslavement. Indeed, America has gone on the military offensive since 9/11, quite decisively taking down two regimes in countries on the other side of the world. America faces security threats of varying severity, yes, but not plausibly a supreme emergency. It is difficult to imagine any state actor, or combination of such, putting America in such a position, much less a non-state actor.¹¹ The only way would be in connection with WMD: if a group could somehow detonate enough WMD to truly devastate America—a very big, massively populated, resourceful and diverse country—then that would fulfil the three supreme emergency requirements of: 1) victimization by aggression; 2) military collapse; and 3) imminent threat of widespread massacre and/or enslavement. This indeed gives America, and other legitimate countries, strong reason to be very vigilant regarding the spread and control of WMD.

(After all, it is often said that terrorists don't want such weapons for deterrent purposes, since they aren't states with territorial interests to protect.

Terrorists want WMD for either blackmail or actual use, and in that sense can, in some circumstances, be even more dangerous than enemy states, even though they have fewer resources. This is true, and it underlines the seriousness of contemporary terrorist threats and ambitions as well as being resolute and determined in confronting them.)

But this possible use of WMD does not, as yet, give Western nations reason to deliberately attack civilians in the ongoing war on terror. The 9/11 attacks *were* outrageous and shocking acts of aggression, and they justified the return strike on the Taliban in Afghanistan, since that regime was sponsoring al-Qaeda in the way defined in Chapter 2. But the attacks manifestly did *not* put America into a condition of supreme emergency, with all the permissiveness and laxity in targeting which Walzer has it imply. When it comes to genuine victims of supreme emergency, we are much more likely to find them *at the other end of the power spectrum*—the small, weak and vulnerable communities which are decidedly unlike the one and only “hyper-power” which the United States has become.

Consider, for instance, communities targeted with, or victimized by, genocide, such as Turkish Armenians in the 1910s, European Jews in the early 1940s, Rwandan Tutsis in the mid-1990s and perhaps Albanian Kosovars in the late 1990s. More recently, in 2004–5, there have been rumblings that the large-scale killings and displacements in the Darfur region of Sudan amount to an attempted genocide of black Christian Sudanese at the hands of Arab Muslim Sudanese. If any community experiences a genuine supreme emergency, it is those confronted with genocide, which means trying to kill or enslave an entire people. Examples more distantly rooted in history might include Native Americans at the hands of the Spanish conquistadors, or Black Africans on the eve of the armed slave trade.¹² Reference to all these instances of genocide is made to underline the reality and urgency of the supreme emergency debate—to illustrate that it is not just about the Nazis, or science fiction scenarios sketching out nuclear wars between Russia and America. Supreme emergencies—thank goodness—are not regular occurrences, even in war. But they seem actually to have happened several times in history and, if the record of warfare teaches us anything, we should not be surprised at the depth and breadth of violent atrocity of which humanity is capable. As responsible thinkers, we must confront this proposed exemption and consider its nature.

Options Regarding Supreme Emergency

There seem to be five major—insightful, influential and logical—options for considering how to conceive of the supreme emergency doctrine. Let’s examine each of them in turn.

Before we do, we should note how the Doctrine of Double Effect (DDE)—very often called upon by just war theory to solve difficult wartime dilemmas—is *not* a viable option when dealing with supreme emergencies. Why?

Because, as we saw last chapter, the DDE (among other things) only lets one perform actions which are otherwise permissible, and in which the unintended bad effects are *not* the means to producing the intended good ones. But in supreme emergencies, the actions contemplated are *not* otherwise permissible (e.g., deliberately killing civilians), and the bad effects *are* the means to producing the good (e.g., hoping, as Churchill did, that the civilian casualties will, somehow, quell the aggressor's appetite and force it to back off).¹³

OPTION #1: NO SUCH THING

This first perspective, or option, asserts that there really is no such thing as a supreme emergency, and that Walzer's proposal is thus a bastardization or corruption of just war theory. The objection here is rooted both conceptually and historically. In the conceptual sense, the supreme emergency conditions might seem too abstract and subject to interpretive disagreement to be useful and immune from gratuitous, self-serving abuse. Consider the vagueness of Walzer's conditions. First, they require that there be a clear victim, and perpetrator, of "aggression." We are all now quite familiar with disputes regarding what exactly counts as "aggression" and "defence" from it—witness the whole debate on anticipatory attack. Second, Walzer says there must be "public proof" of imminent military defeat *and* subsequent massacre or enslavement. Such "proof," though, can be hard indeed to come by. They famously say, after all, that truth is the first casualty of war. Discerning the future tides of war-fighting, and the intent of one's opponent, can be very difficult, especially amidst the heat of battle. We know generally that, in war, people overestimate the risks they face. Everything seems like a super-heated crisis. We have also recently witnessed, in connection with America's 2003 Iraq attack, the apparent failure of even the best-funded intelligence agencies to come up with plausible and well-grounded conclusions, in this case regarding a connection between Iraq and al-Qaeda as well as Iraq's possession of WMD before the attack. Third, there is the issue of what counts as an imminent "military defeat." Is it simply a big, crushing loss in a high-profile battle? Is it loss of one's political capital to the enemy? Or is it, as I would suggest, something more like the total collapse of an effective armed forces capability, literally rendering you defenceless? Next, there is vagueness regarding what "close and imminent" means. Are we talking weeks, days, or hours? Are we agreeing, with Oliver Wendell Holmes, that the threat of supreme emergency must (merely) be "a clear and present danger"? Or are we saying something more stringent, as I would be inclined to believe, such as: you have imminency only when you'll lose and then be massacred unless you switch to exceptional measures. Finally, the criteria require that, after the military defeat, you know you will be subjected to "widespread massacre and/or enslavement." Massacre and enslavement seem fairly straightforward in meaning, but "widespread" is not. How much is widespread: five per cent, ten per cent, fifty per cent or

more of your population? Or a distinctive sub-set of your population—such as a visible or especially powerful minority group—even if, overall, it doesn't add up to many numbers or a large percentage?

This first, sceptical perspective might also wonder whether the one example that these theorists all seem to agree on—namely Britain in 1940—actually was a supreme emergency. After all, while Nazi *invasion* seemed imminent, Britain's *military collapse* was not, or at least it is not a clear causal connection to go *from* suffering invasion *to* suffering total military collapse. We also cannot forget Churchill's political self-interest in exaggerating the threat that Britain faced: doing so would drive the British people to greater efforts, and it would also serve as a strong rhetorical and moral tug on the United States to finally get involved in the war on the Allied side. Moreover, Walzer and Rawls surely err when they talk of Britain "standing alone" against the Nazis at this time. For Britain had all of its colonies and ex-colonies fighting alongside it from the first days in 1939. They included Australia, Canada, India, New Zealand and the Caribbean island nations. This is to say that Britain had far greater resources to draw on than any of the Continental countries that fell to the Nazis during the Blitzkrieg, including France. In fact, Britain probably had more resources to draw on than all those countries put together, and had the advantage of geography to boot: an island has a natural ring of defensive water all around. To what extent, then, did it actually face a supreme emergency as Walzer defines it? Drawing on these considerations of conceptual vagueness and questionable historical application, the sceptical perspective might well conclude that the supreme emergency exemption is a big, bad, dangerous *moral loop-hole* in just war theory, and we're better off without it. Perhaps this is why it appears nowhere in the international laws of armed conflict. The rules are the rules, and we shouldn't allow for exceptions to them, or ways for belligerents to get around them.

While I do think that this perspective adds some very healthy precautionary scepticism regarding the supreme emergency exemption, in the end I believe it fails to persuade. While far too many just war theorists accept the exemption uncritically, and apparently on little more than Walzer's authority, it really does seem as though supreme emergencies can be real. Witness the examples of genocide offered last section. Also, from the fact that supreme emergencies can be hard to define conceptually, it does not follow that we should get rid of, or dismiss, the very idea itself. There is, after all, a whole roster of vitally important ideas in moral and political philosophy (e.g., freedom, equality, human rights, justice, democracy) that we should have to throw out as well if that were the case. The conceptual difficulty just means that our jobs aren't easy. The same holds for the objection regarding liability of the concept to self-serving abuse. We know full well that, subjectively, *all* belligerents in *every* war will try to claim for their side *any* concept which justifies their actions. There is an old saying: "Even the Devil can quote

Scripture.” Just because people or countries *claim* that their actions are justified does *not* make it so. The task for them, as we have strongly asserted, is to show that their subjective beliefs correspond to objectively defensible standards and to intersubjectively plausible evidence. This is an absolutely vital point, not just for supreme emergency but for all of just war theory and international law, and it seems it cannot be made forcefully enough, or repeated often enough.

OPTION #2: CHURCHILL’S CONSEQUENTIALISM

This second perspective states that, when in supreme emergency, only *jus ad bellum* matters, therefore the rules of *jus in bello* may be set aside. Churchill clearly believed this, and Walzer partially believes it. (More on Walzer’s nuanced view to follow below.) Other exemplars of this view may be Generals Grant and Sherman during the US Civil War. Both believed that the South was the aggressor, and that its social system of slavery was so unjust that it could not, under any conditions, be allowed to win. Thus, they both took a very permissive view regarding what the North was entitled to do to bring about victory. Note, for instance, Sherman’s notorious “scorched earth” policy against the state of Georgia wherein, after his divisions conquered territory, they set it ablaze so as to ruin it for any Southerners who might re-group to plan future military action.¹⁴

The strength of this view is that it offers a morally coherent response to the supreme emergency dilemma. And depending on your views regarding the essence of ethics, it may offer you complete satisfaction on this issue. Upon reflection, though, I think this perspective has four fatal flaws to it.

The first flaw is precisely that it violates the human rights of enemy civilians, understood by international law and just war theory to be non-combatants. As such, this view violates our core commitment not to punish the innocent. As Thomas Nagel eloquently puts it: “hostile treatment of any person must be justified in terms of something *about that person* [his italics] which makes the treatment appropriate.” We distinguish combatants from non-combatants “on the basis of their immediate threat or harmfulness.” And our response to such threats and harms must be governed by relations of directness and relevance.¹⁵ But it is not the enemy civilians who are threatening us, it is their military machine, and so it is impermissible to strike out deliberately at the civilians, because even in a supreme emergency it is not they who are the direct and active agents of the brutal force.

Churchill’s consequentialism is also problematic because it seems to endorse the proposition that “the ends justify the means.” We all know the flaws in this proposition, notably the one that it violates the principle never to treat persons as mere subjects to be sacrificed against their will, or for the sake of some glorified social project. Individuals all have autonomy unless they themselves forfeit it, and this nicely ties in with the previous claim about

the human rights of enemy civilians, and how they do nothing to forfeit them. Believing and acting on this proposition—that the ends justify the means—can also be morally corrupting in the following sense: isn't civilian murder the very thing feared at the hands of the aggressor? If so, what entitles you to commit the very same action?

Thirdly, why have *jus in bello* at all if *jus ad bellum* is what ultimately matters? Now some people, apparently Grant and Sherman, seem to believe this: "war is hell," whether just or unjust, so at least let's make sure that the just side wins. Let's give the just side wide, or even complete, sway regarding its selection of tactics and targets. This attitude, however, ignores the compelling reason we have in favour of maintaining *jus in bello* rules: they prevent escalation into indiscriminate slaughter and total, no-holds-barred warfare. And if just war theory stands for anything, it is that total warfare must be avoided. The very essence of just war theory, we now know, is to insist on *restraints* in the reasons for fighting, and in the means used in fighting.

Finally, Churchill's consequentialism is at odds with our moral convictions in an analogous inter-personal case of supreme emergency. Suppose that aggressor person A murderously attacks victim B, and B drags in innocent bystander C, to serve as a shield between him and A. How should we evaluate B's actions during his own personal supreme emergency? I suggest that none of us, upon reflection, would argue that B's actions are morally justified. Indeed, the immediate reaction, normally, is that B is behaving like a selfish and despicable coward, endangering an innocent person's life instead of confronting his own danger like a man. Upon consideration, though, it is compelling to understand that this immediate response may be too judgmental, since it is offered by those of us who reflect in comfort upon a fellow person's desperate choices amidst terrifying danger. (We like to comfort ourselves by supposing we would make better choices under such conditions. But until we experience similar extraordinary pressure and fear, we might want to climb down from our tower of condemnation.) It seems equally erroneous, however, to pretend there is nothing wrong with B doing whatever he wants—including sacrificing C—to save his own life. Yet that is precisely what Churchill's consequentialism would here imply. Clearly, B has no right to violate C's rights in this case: C has done nothing wrong, nothing that would render her rights forfeit. She is an innocent bystander that B decides to use as a mere tool in service of his own end of survival. B utterly disregards C's humanity in this instance; he treats her as a prop, not a person. In my view, he is almost as culpable for her death as A, should she succumb from her injuries sustained while serving as a shield between the two.

The most complete and accurate judgment of this interpersonal analogy seems to be this: B has no right to drag C into the situation, and if he does so he commits a severe moral wrongdoing. However, we might be willing to excuse B's actions, on grounds that the terrible duress and mortal fear

operative on him, in the situation, drove him to make the terrible choice he did. Like any animal filled with mortal terror, he desperately reached out for any means necessary to stave off death. This doesn't make his choice *right* or morally justifiable; it merely makes it *understandable* and, depending on the exact circumstances, *excusable* from criticism or punishment. It will be excusable if we determine that the pressure, in the case, was so extreme that B acted more out of animal instinct than out of a morally culpable decision-making capacity. We would say, under such conditions, that *he was forced to do something terribly wrong*. This case, and this distinction between having moral justification for doing X, and being excused for doing X, are vital in my mind to a proper understanding of a supreme emergency.

OPTION #3: STRICT RESPECT FOR *JUS IN BELLO*

This third perspective says that, even in supreme emergency conditions, one must still scrupulously respect the rules of *jus in bello*. Colloquially, this is the view that "let justice be done, though the heavens fall." Kant and Socrates are probably exemplars of this view, as is a different part of Walzer, and the international laws of armed conflict themselves. Nowhere, in any piece of international law, does it say that military necessity is a valid reason for setting aside the rules of armed conflict. In fact, in several places it is stated quite clearly that, since the rules have been framed *in the first place* with military necessity already in mind, no appeal to necessity can override the need to respect the rules.¹⁶

This view has seductive strengths from the moral point of view. Notably, it avoids each of the four problems detailed with Churchill's consequentialism. Unlike that perspective, this one respects the human rights of enemy civilians, does not endorse the proposition that "the ends justify the means," maintains *jus in bello* as a meaningful category, and can be brought into accord with our considered judgment in the interpersonal analogy. It is also a consistent and coherent response to the supreme emergency dilemma and, if one has certain moral leanings, it may offer total satisfaction in this regard. Think of Socrates' powerful pronouncement that it is always better to suffer injustice than to inflict it oneself. Yet this view, in spite of its moral force, also has flaws.

The first flaw with this view is that it seems quite unrealistic. Strict respect for *jus in bello*, in this case, might result *not just* in victory for the aggressor, *but also* the kind of horrible slaughter or slavery previously detailed. Realistically, who is going to follow the advice of this option? Respecting *jus in bello* is, to an extent, agreeing to fight with one arm tied behind one's back. Now, this might be fine so long as one can still win, or at least if one loses, it is simply a "run-of-the-mill" military defeat involving things like territorial concessions. But that is *not* what we're talking about with supreme emergency: we are talking about not just defeat but slaughter, slavery and total

catastrophe. In the face of such a threat, who in their right mind is still going to fight with one arm tied behind their back?

John Fiala says that Kant will still agree to fight with one arm tied, but only because he has a philosophy of history—i.e., a system of beliefs about how history will unfold—which guarantees the eventual, complete victory of liberal democracy. In other words, one day the planet will be covered with nothing but legitimate, rights-respecting regimes. So Kant can relax about the occasional supreme emergency, and insist on respect for *jus in bello*, since in the end rights-respecting democracies are destined to triumph, and brutal, rights-violating aggressors will disappear from the face of the Earth.¹⁷ While that is an accurate description of Kant's philosophy of history—about which more in the next two chapters—I don't believe that that is *why* Kant still insists on respecting *jus in bello*. For Kant, elsewhere, says there is no guarantee that doing the right thing will improve the world, or even serve your self-interest. Doing one's duty might not make one happy—but it remains one's duty. Perhaps this is just an instance of this conviction. Here in supreme emergency we perhaps discern the full strength and import of Kant's commitment to morality: you are to adhere to moral demands even if it costs you your life. Morality is thus revealed to be the single most important thing in life for Kant: the act which shows humanity at its very best. Something of the same can be said of Socrates, with his own example of sticking to his principles even though it led to him being forced by the Athenian court to drink poison and die.¹⁸ Critics of Kant and Socrates (and we can hear them baying at this point) alternatively suggest that first you have to survive, and then you can be moral. Existence precedes ethics, so to speak.

The second weakness with this option is that, as Walzer notes, it is fundamentally irresponsible on the part of the victim country's government, which has an obligation to protect its country's citizens from massacre and enslavement. There's a vital moral duty which the government owes its own people to do what it can to stave off the horrifying suffering and death which are part-and-parcel of the supreme emergency condition. Walzer says that if the state has any moral value at all, it is precisely to defend those whom it represents. Failure to provide such defence—much less deliberate standing-down in the face of holocaust—is an abdication of office and it dissolves the social contract which formerly united rulers and ruled, the people and their state. In other words, it is one thing to sacrifice *oneself* for one's own principles, like Socrates; it is quite another to sacrifice *others*. The state's duty to protect implies that it cannot deliberately sacrifice its own citizens when effective resistance might still be available.¹⁹

OPTION #4: WALZER'S PARADOXICAL DIRTY HANDS

As previously mentioned, part of Walzer endorses Churchill's consequentialism, while another part of him supports Kant's strict respect for the rules.

Walzer thinks that being politically realistic in supreme emergencies drives one towards the former, while being morally sensitive inclines one towards the latter. We have, on the one hand, his before-quoted remark that one can, in fact, do anything to defeat Nazis. Similar to it is his recommendation, during a supreme emergency, to “wager this determinate crime (the killing of innocent people) against that immeasurable evil (a Nazi triumph).” On the other, Walzer also tells us that civilians are not in any material sense “dangerous men.” Thus, “they have done nothing, and are doing nothing, that entails the loss of their rights.” So they may not be made the direct and intentional objects of military attack. He declares, moreover, that “the destruction of the innocent, whatever its purposes, is a kind of blasphemy against our deepest moral commitments.”²⁰ He then asks: “How can we, with our principles and prohibitions, stand by and watch the destruction of the moral world in which those principles and prohibitions have their hold? How can we, the opponents of murder, fail to resist the practice of mass murder—even if resistance requires us, as the phrase goes, to get our hands dirty (that is, to become murderers ourselves)?”²¹

Walzer accordingly describes his position on supreme emergency as paradoxical. The victim community may set aside *jus in bello* rules, so as to protect its people and defend itself from slaughter, *yet* doing so is still morally wrong, in that it will involve the murder of enemy civilians. Walzer says that when “the very existence of a community may be at stake,” “the restraint on utilitarian [or consequentialist] calculation must be lifted. Even if we are inclined to lift it, however, we cannot forget that the rights violated for the sake of victory are genuine rights, deeply founded and in principle inviolable.”²² The deliberate killing of innocents, though murder, can nevertheless be justified in a supreme emergency: it is simultaneously right and wrong. At the same time and with respect to the same action, we say “yes and no.” Bomb the residential areas deliberately—murder those civilians—but do so only because you are “a nation fighting a just war [which] is desperate and survival itself is at risk.” “(In supreme emergencies,” Walzer concludes, “our judgments are doubled, reflecting the dualist character of the theory of war and the deeper complexities of our moral realism; we say yes *and* no, right *and* wrong [his italics]. That dualism makes us uneasy; the world is not a fully comprehensible, let alone a morally satisfactory place.”²³

Walzer’s position underlines the sheer difficulty of the supreme emergency dilemma, whereas the other positions might seem simplistic and one-sided by contrast. His reconstruction of contemporary just war theory possesses great authority, and is aimed in this specific regard at balancing the insights of the two extreme positions of respecting the rules scrupulously, on the one hand, and discarding them completely, on the other. Yet we might wonder about the coherence of his doctrine, as well as its action-guiding properties. The upshot of just war theory, after all, is precisely to devise coherent rules that statesmen and soldiers can refer to as they make choices under pressured

wartime conditions. This has been a major objective throughout this book. With Churchill's consequentialism, the nature of the advice is—in spite of its substantive problems—quite clear: disregard *jus in bello*, and do whatever you can to stave off supreme emergency. Kant's doctrine, despite its limitations, likewise provides coherent guidance: you must still adhere to *jus in bello* even in the teeth of a supreme emergency. Where, we might ask, is the coherent advice in Walzer's position of paradox? He seems, after all, to stress that the various options in a supreme emergency are *both* right and wrong. Consider the most relevant quote here: "A morally strong leader is someone who understands why it is wrong to kill the innocent and refuses to do so, refuses again and again, until the heavens are about to fall. And then he becomes a *moral criminal* [my italics] ... who knows that he can't do what he has to do—and finally does."²⁴ It is in reflection on this curious pronouncement that we see Walzer's position is, ultimately, not so evenly balanced between the two options as his self-reference to paradox would have us believe.

In the final analysis, Walzer leans a little bit towards Churchill's consequentialism, and this allows him at least to offer coherent advice, but it comes at the cost of some of the moral controversy attaching to that attitude. Walzer's advice to statesmen and soldiers in a supreme emergency is this: you must set aside *jus in bello* and do what you can to stop the supreme emergency, even though this will involve horrible wrongdoing. You actually have a duty to do this—to get your hands dirty, to shoulder personally the burden of this crime—because the function of your office is to defend your people. This is coherent advice, but still somewhat paradoxical: you have an important moral duty to violate another important moral duty; you have the right to do something that is not right. Even though Walzer urges this "dirty hands policy" upon statesmen and soldiers, he says they should not face war crimes trials after the war ends. They should, at most, be criticized and shamed after the war. Walzer here cites approvingly the British policy to withhold highest honours to RAF Commander Arthur Harris, who was humiliated by being the only senior UK military official denied such honours after World War II.²⁵

OPTION #5: MORAL TRAGEDY, PRUDENTIAL STRATEGY

The point of this section—the fifth perspective—is to present an alternative way of thinking about supreme emergency which, on balance, is superior to all the previously-discussed rivals.²⁶ I stress that what follows applies *only* to the *external* issue of how to treat one's enemies. In my view, the *internal* issue of domestic human rights satisfaction remains as discussed last chapter. The entry point of this option reminds us that we can look at a person, or action, from at least two different perspectives. Consider, for example, Kant's thoughts on the nature of a human being. Famously, Kant argued that humanity

is a composite of “animal instinctuality” and “free rationality.” Considering the human being as *phenomenon*, we see a quite limited, corporeal animal entity, subject to all the physical laws of nature, hard-wired to seek its own survival and satisfaction. Considering the human being as *noumenon*, we see not so much finite body as expansive mind, we discern moral freedom instead of physical necessity, and we witness commitment to reason and justice even at the cost of our own happiness, and perhaps sometimes even of life itself. It is the exact same object—the human person—yet seen as possessing radically different properties depending on the perspective chosen. While Kant clearly sided with the noumenal self, he knew the phenomenal self to be in some sense inescapable, and in fact viewed much of life as a struggle between the two for primacy.²⁷ I propose that much can be gained from viewing the supreme emergency condition analogously under two different perspectives: the moral and the prudential. Morally, a supreme emergency is a terrible tragedy. Prudentially, it is a struggle for survival.

From the moral point of view, a supreme emergency is a moral tragedy. A moral tragedy occurs when, *all things considered*, each viable option you face involves a severe moral violation. It is a moral blind alley: there is no way to turn and still be morally justified. Colloquially, in a supreme emergency, “you’re damned if you do, and damned if you don’t.” You’re damned if you do, so to speak, because if you “do,” you violate *jus in bello* and commit widespread civilian murder. You’re damned if you don’t, on the other hand, because if you “don’t,” you fail to protect your own civilians from widespread murder. On this understanding, there is no supreme emergency exemption, where such is conceived as a *moral* exemption, permission or loophole. *The whole thing is a wretched moral tragedy and, no matter what you do, you’re wrong.* This option differs from Walzer’s in two important respects. First, it captures and highlights not merely the difficulty of the dilemma but its full-blown tragedy. I think reflection upon war’s tragedy is something which just war theory can benefit from, and which has hitherto been ignored.²⁸ Not everything in war can be morally justified—in supreme emergency we hit a wall where we see that, morally, we run out of permissible options. Yet still we must choose and act—the world forces this upon us. Second, this option retains no aspect of paradox, as Walzer’s still does. Walzer suggests that, in a supreme emergency, you have the right to do wrong, and/or a duty to violate duty, whereas no such confounding claims are here made, resulting I believe in a more coherent understanding. You don’t have the right to do wrong, nor a duty to violate duty: if you do wrong, you do wrong, even under the pressure of supreme emergency conditions.

From the prudential point of view, a supreme emergency is a desperate, Hobbesian struggle for survival, and as a matter of fact any country subjected to it *will do* whatever it can to prevail. The animal instincts are going to kick in, just as in our interpersonal analogy involving A, B, and C. Yet these instincts can still be channelled by rules of rational choice—you want your

self-saving actions to work, after all. Which rules would here help? First, make sure resort to supreme emergency measures are, in fact, *a last resort*. Wartime can create an overheated crisis atmosphere, in which people discern “emergencies” which aren’t, in fact, there. There are a great many options, permissible according to standard just war theory, to be tried prior to actions which violate the rules. As the war goes badly, perhaps things like conscription or assassination should be tried. Perhaps, as the Russians have sometimes done historically, the thing to do is pull back from one’s borders, moving one’s people and maybe strategically despoiling some territory, so as to put distance between oneself and the aggressor. We have to make sure supreme emergency measures aren’t taken hastily, out of a failure of imagination surrounding standard tactics.

A second rule of prudence is *to publicly declare* what one intends to do. This ties into last resort: it gives the aggressor pause, articulating the extreme measures to be taken if he, in fact, persists to push one into a condition of supreme emergency.

The public declaration should also serve as an *appeal to the international community*. The international community clearly has a moral duty of humanitarian intervention to aid a country in supreme emergency and do everything reasonable to stop the aggressor. The victim has every self-interest in appealing for such intervention, just as individuals in personal supreme emergencies should yell “help!” “police!” or “fire!” to bring in outside support. At the same time, the reaction of the international community has, sadly, been known to be inefficacious, half-hearted or absent altogether—we think here of Rwanda²⁹—and so, pending the imminency of the supreme emergency, the victim must always act of its own accord and not pin inflated hopes on the historically fickle replies of the international community.

Fourth, one must, to the extent possible, keep one’s mind clear of other temptations, such as the passions of revenge and bloodlust or just an inclination to destroy, to take others down with you, so to speak. This is to say that even here there should be *a right intention*—not one of moral purity, but rather one of prudential effectiveness, namely, that the purpose of one’s actions is one’s survival.

Any supreme emergency measures, above all, must have a *reasonable probability of success*. This fifth rule is absolutely vital: are the extreme measures contemplated actually going to make a difference? This is particularly important in connection with civilian targeting: if it is the aggressor’s military machine which is pushing one into supreme emergency, *how is killing his civilians actually going to help?* To be blunt—if it came down to this—why not employ a tactical WMD against the aggressor’s front line, instead of unleashing civilian slaughter?³⁰ Churchill argued that his policy of civilian bombing worked, because Hitler gave up his UK invasion plans. True, but the bombing didn’t actually beat Hitler—what did was standard tactics, aimed at his military machine and industrial supply, for several

sustained years after that. In my view, the probability of success regarding deliberate civilian targeting is probably very limited, and more utility can likely be had by violating other *jus in bello* rules while still aiming at legitimate military targets, notably the ban on prohibited weapons. We should note that probability of success is relevant on several levels: not just, will our first strike stave off supreme emergency? But how is the aggressor likely to respond to that first strike? And can we withstand his response and formulate a forceful second strike? And so on.³¹ This is, of course, very difficult to do under the crush of these conditions, yet some consideration simply must be given to it, since the ultimate goal remains one's survival.

Having this twofold perspective on supreme emergency is very advantageous. It raises the important issue of moral tragedy, and it contains more detailed, practical rules of thumb for soldiers and statesmen than any of the other four approaches. It thus provides concrete, considered advice. I suppose the final question is this: which perspective is more important, the moral or the prudential?³² I view this as a loaded and misleading question. Both perspectives are vital to a complete analysis: victims of supreme emergency are going to fight to survive, and they need rules of thumb to help them achieve that goal. At the same time, supreme emergency measures—while (hopefully) prudentially useful—remain morally wrong insofar as they involve *jus in bello* violations. I view the scenario as directly analogous to the interpersonal case: the victim was forced to do wrong. The measures remain wrong even though aimed against a terrible aggressor. Owing to the severe duress of the supreme emergency condition, the victim resorted to immoral measures to stave off disaster and death. Owing to this duress, we can excuse the victim's actions, but never justify them. And I think the excuse from punishment should be extended to everyone involved in the extreme measures. Picking out one official, like "Bomber Harris," for public shaming seems both *pro forma* and unfair. *Pro forma*, because it is purely symbolic, and unfair because in Harris' case many others—including Churchill himself—were involved in the bombing, but only he was singled out.

I do believe that the victim country, supposing its supreme emergency measures to succeed, owes its citizens and the international community a full public accounting, after the war, for what it did and why it did it. But that is all—no war crimes trials, no shaming, no symbolic hand-wringing. It was forced to do terrible things in order to survive. Indeed, depending on the circumstances, the international community might also have some explaining of its own to do, regarding why it failed to intervene effectively and to stop the situation from becoming so desperate and bleak in the first place.

Summary

This chapter considered the case of supreme emergencies, which are nowhere defined, or permitted to be cited, in international law. Discussion of them has

continued, however, owing to historical and recent events, speculation on dark scenarios and the authority of figures like Rawls and Walzer. We considered five options for thinking about ethics with such emergencies. We rejected four of the most common and settled on the fifth option, which suggested that violating *jus in bello* in crisis remains morally wrong but might nevertheless be excused on grounds of duress and tragedy. There are still prudential (and familiar) rules of thumb which should be followed, and of course a genuine supreme emergency is perhaps the clearest instance demanding armed humanitarian intervention from the international community. So here, too, we see that deep, sustained reflection on one concept of just war theory (i.e., supreme emergency within *jus in bello*) necessarily raises material connections to the other categories, especially *jus ad bellum*. Ultimately, it all relates—and the tone of the relation is first established by issues of just cause and political legitimacy.

Notes

1. W. Churchill quoted in M. Walzer, *Just and Unjust Wars* (New York: Basic Books, 3rd ed., 2000), 245. For primary sources: W. Churchill, *The Gathering Storm* (London: Macmillan, 1961), 488–90; W. Churchill, *The Hinge of Fate* (New York: Bantam, 1962), 770 f.
2. Walzer, *Wars*, 251–68.
3. Grotius quoted in P. Christopher, *The Ethics of War and Peace* (Englewood Cliffs, NJ: Prentice Hall, 1994), 109.
4. Churchill, *Storm*, 488; Churchill, *Hinge*, 770.
5. Walzer, *Wars*, 253.
6. Churchill, *Storm*, 490–2; Churchill, *Hinge*, 770.
7. J. Rawls, *The Law of Peoples* (Cambridge, MA: Harvard University Press, 1999), 98–105; J. Rawls in *Dissent's* Summer 1995 symposium on the bombing of Hiroshima.
8. M. Walzer, *Arguing About War* (New Haven: Yale University Press, 2004), 39.
9. J. Costello, *The Pacific War* (New York: Harper, 1982).
10. D. Kellogg, “Reaping the Whirlwind: Terrorism, Supreme Emergency and the Abandonment of *Jus in Bello* Restrictions on Attacking Enemy Civilians,” Unpublished paper, 2002, University of Maine; R. Scarborough, *Rumsfeld's War* (New York: Regnery, 2004); R. Giuliani, *Leadership* (New York: Miramax, 2002), 3–28, 341–80; B. Adler, ed. *The Quotable Giuliani* (New York: Pocket, 2003), 23–54; the post-9/11 speeches of President George Bush Jr., all available in complete text at <www.americanrhetoric.com>.
11. In terms of state actors, we could I suppose imagine a grisly scenario involving war between the USA and, say, Russia and/or China. The latter two probably do have enough WMD to put America into supreme emergency.
12. Thanks to Neta Crawford for these examples. On the history of genocide, see F. Chalk and K. Jonassohn, eds. *The History and Sociology of Genocide* (New

- Haven, CT: Yale University Press, 1990); and S. Totten, et al, eds. *Century of Genocide* (New York: Garland, 1997).
13. For more on the DDE, see Walzer, *Wars*, 151–60 and our discussion last chapter. Thanks to Alex Moseley for discussions on this.
 14. Walzer, *Wars*, 29–34. This is the option Walzer describes as “the sliding scale.”
 15. T. Nagel, “War and Massacre,” *Philosophy and Public Affairs* (1973), 133–41.
 16. W. Reisman and C. Antoniou, eds. *The Laws of War: A Comprehensive Collection of Primary Documents Governing Armed Conflict* (New York: Vintage, 1994); A. Roberts and R. Guelff, eds. *Documents on The Laws of War* (Oxford: Oxford University Press, 1999).
 17. J. Fiala, “Terrorism and the Philosophy of History: Liberalism, Realism and the Supreme Emergency Exemption,” *Essays in Philosophy* (Vol. 3, 2002), 1–15; M. Doyle, *Ways of War and Peace* (New York: Norton, 1997); M. Doyle, “Kant, Liberal Legacies and Foreign Affairs,” *Philosophy and Public Affairs* (1983), Vol. 12, pp. 205–54 and 323–53; M. Brown, ed. *Debating the Democratic Peace* (Cambridge, MA: MIT Press, 1996).
 18. B. Orend, *War and International Justice: A Kantian Perspective* (Waterloo, ON: Wilfrid Laurier University Press, 2000).
 19. Walzer, *Wars*, 251–68.
 20. The quotes, in order, from: Walzer, *Wars*, 231, 259, 146–51, 262–8.
 21. Walzer, *Arguing*, 37.
 22. Walzer, *Wars*, 195, 228.
 23. Walzer, *Wars*, 325–8 and 251–68.
 24. Walzer, *Arguing*, 45.
 25. Walzer, *Wars*, 251–68; M. Walzer, “Political Action: The Problem of Dirty Hands,” *Philosophy and Public Affairs* (1972/3), 160–80.
 26. I wish especially to thank Patrick Hayden, Danny Statman and Toni Erskine for stimulating and sharpening my thoughts regarding what follows.
 27. Orend, *Kantian Perspective*, 10–36.
 28. Another concept which just war theory might gain by adding would be mercy.
 29. G. Prunier, *The Rwanda Crisis: History of a Genocide* (New York: Columbia University Press, 1995); R. Dallaire, *Shake Hands with the Devil: Humanity’s Failure in Rwanda* (New York: Random House, 2003).
 30. In other words, and as an accommodation to realism, I do admit there might be extreme, very rare conditions when WMD use—perhaps including nukes—might at least be excusable (but probably never justifiable). More on realism in Chapter 8.
 31. Thanks to Neta Crawford for emphasizing this.
 32. Toni Erskine has urged this question, and choice, upon me. But I don’t think I have to choose, for reasons explained.